Enterprise Software Licensing & Data Privacy Agreement

ENTERPRISE SOFTWARE LICENSE AND CLOUD SERVICES AGREEMENT

This Agreement is made by and between DataFortress Inc. ("Licensor") and Global Finance Corp ("Licensee").

1. GRANT OF LICENSE

Subject to Licensee's compliance with this Agreement and payment of the annual subscription fee of $120,000, Licensor grants Licensee a limited, non-exclusive, non-transferable, revocable license to access and use the DataFortress Cloud Analytics Platform ("Software"). This license is strictly limited to 500 named internal users. Licensee may not share accounts, sublicense, resell, reverse engineer, or create derivative works from the Software.

2. AUDIT RIGHTS

Licensor reserves the right, upon 48 hours written notice, to audit Licensee's systems, databases, and employee usage logs to verify compliance with the 500-user limit. If the audit reveals that Licensee has exceeded the permitted number of users, Licensee shall immediately pay a penalty fee equal to 300% of the standard subscription rate for each unauthorized user, plus the full cost of the audit.

3. SERVICE LEVEL AGREEMENT (SLA)

Licensor will use commercially reasonable efforts to ensure the Software is available 98% of the time during any calendar month, excluding scheduled maintenance. If uptime falls below 98%, Licensee's sole remedy shall be a service credit equal to 5% of the monthly fee. Under no circumstances shall downtime constitute a breach of this Agreement or entitle Licensee to a refund or right of termination.

4. DATA PRIVACY AND SECURITY (GDPR/CCPA)

Licensee acknowledges that it is the "Data Controller" and Licensor is the "Data Processor." Licensee is solely responsible for obtaining all necessary consents from individuals before uploading personally identifiable information (PII) into the Software. Licensor shall implement reasonable security measures, but LICENSOR SHALL NOT BE LIABLE FOR ANY DATA BREACH, HACKING, OR UNAUTHORIZED ACCESS TO LICENSEE'S DATA, UNLESS CAUSED BY LICENSOR'S INTENTIONAL SABOTAGE. Licensee agrees to indemnify Licensor against any fines, regulatory actions, or lawsuits arising from a data breach involving Licensee's uploaded data.

5. AUTO-RENEWAL AND PRICE INCREASES

The Initial Term of this Agreement is three (3) years. Upon expiration of the Initial Term, this Agreement shall automatically renew for successive one (1) year periods. Licensor reserves the right to increase the annual subscription fee by up to 25% for each renewal term by providing notice to Licensee at least thirty (30) days prior to the renewal date.

6. SUSPENSION OF SERVICE

Licensor reserves the right to suspend Licensee's access to the Software immediately and without notice if: (a) Licensee's account is more than 5 days past due; (b) Licensor suspects Licensee is using the Software for illegal purposes; or (c) Licensor determines, in its sole discretion, that Licensee's usage patterns threaten the stability of the cloud infrastructure.

7. GOVERNING LAW AND VENUE

This Agreement shall be governed by the laws of the State of Delaware. Any legal action arising out of this Agreement must be filed exclusively in the state or federal courts located in Wilmington, Delaware. Licensee waives any objection to jurisdiction or venue in such courts and agrees to pay Licensor's legal fees if Licensor prevails in any dispute.